

and such entry of registry shall have the same effect from such dates as if it had been registered under this section."

Intention and
effect of the
Act.

That is, the same effect as docketted judgments in England before the practice of docketting was there discontinued. And it is submitted, that under the above 7th and 8th sections, taken with the first, such formerly registered judgments with the new entry made as above prescribed, will stand in precisely the same position from the date of the new entry, as judgments entered up and registered after the 1st January, 1850; and such would seem to have been the intention of the Act.

Judgment creditors parties to
Bills.

All the holders of such registered judgments and conveyances will have the right to redeem as against a prior encumbrancer, and will be proper parties to bills, to redeem and foreclose; and their rights cannot be extinguished without their being so made parties.

Proviso as to
bona fide
purchasers.

The proviso at the close of the above second section, taken in connection with 8th section, can only affect a small class of cases. The old rules will hold in cases where the question lies between two encumbrancers, neither of whom have registered, and the same would have been the result, had the above proviso been omitted, for the other provisions of the Act do not apply to such cases.

Tacking.

The doctrine of Tacking, which is done away with by the above 4th section, had been, though with some remarks as to its inconvenience, held to apply in this country. It is thus defined by Mr. Justice Story in his Equity Jurisprudence, sec. 412, "Uniting Securities given at different times, so as to prevent any intermediate purchasers from claiming a title to redeem, or otherwise to discharge, one lien, which is prior, without redeeming or discharging the other liens also, which are subsequent to his own title. Thus, if a third mortgagee, without notice of a second mortgagee, should purchase in the first mortgage, by which he would acquire the legal title, the second mortgagee would not be permitted to redeem the first mortgagee without redeeming the first mortgage also; for in such a case Equity tacks both mortgages together in his favor.

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